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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the complaint submitted by Mr. XX on
06/10/2020, regularized on 21/12/2020, pursuant to Article 77 of the Regulation, which reported a
violation of the rules on the protection of personal data by Wi-Planet Sas di Torri Carlo Alberto and C.;

HAVING REGARD to the observations made by the Deputy Secretary General pursuant to Article 15
of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. The complaint and the preliminary investigation.

With the complaint submitted to this Authority on

06/10/2020, regularized on 21/12/2020, Mr. XX stated that he had submitted on

03/07/2020, against Wi-Planet Sas di Torri Carlo Alberto and C. (hereinafter "the Company"), a request
pursuant to Article 15 of the Regulation regarding the processing of his personal data collected by the
Company at the time of entering into a commercial contract.

The request, duly notified to the Company's certified email address, was not responded to within the
time limits set by Article 12, paragraph 3, of the Regulation.

With the note of 14/05/2021, the Office invited the Company to provide observations regarding the
complaint and to comply with the requests of the complainant.

The Company, in a note dated 31/05/2021, preliminarily stated that "the email [of the complainant] has
indeed escaped the administration of this Company, albeit due to a mere error caused, unfortunately,
by the organizational difficulties arising from the ongoing pandemic emergency."

Regarding the data subject to processing, since they were collected at the time of signing a contract
which thus constitutes the basis for the lawfulness of the processing carried out, the Company limited
itself to indicating the type (namely name, surname, address, tax code, telephone number, email, and
bank details), without, however, providing further details.

Furthermore, the purposes of the processing and the retention times were indicated, specifying that, at
the end of the indicated periods, "the customer's data will be permanently deleted, no longer remaining
in the availability of the Writer."

The Company also clarified that the collected data were not communicated to third parties, but only to
internal subjects of the company responsible for managing invoicing, payments, and defaults, as well
as to the technical department "for any maintenance interventions" and to the commercial department
"only for the communication to the customer of any improvements and/or upgrades of already active
services."

2. The initiation of the procedure.

In light of the above, the Office proceeded to notify the Company of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 12, paragraph 3, and 15 of the Regulation (note of 24/06/2021).

The Company, in a note dated 23/07/2021, sent its defensive writings, pursuant to Article 18 of Law No. 689/1981, reiterating that "the failure of the Writer to respond to the request under Article 15 received from the complainant occurred (...) due to a mere administrative error caused by the organizational difficulties suffered due to the ongoing pandemic emergency."

The seriousness of the violation, assessed "together with the brevity of its duration and the involvement of only one interested party, whose data were lawfully processed, also from the point of view of proportionality, due to the existence of a contract between the parties, can be said to be quite limited, thus reinforcing the idea of the very slight culpability of Wiplanet."

Finally, with reference to the "measures taken to remedy the violation and mitigate its consequences, it has been (...) provided to give – immediately after becoming substantially aware of it – the widest response to the interested party himself, as well as to this Authority (...)"

The Company communicated, on 13/11/2023, its intention to waive the hearing initially requested "due to the lack of new elements in the case."

3. The outcome of the investigation.

Following the examination of the documentation produced and the statements made by the party during the procedure, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a procedure before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code. It has emerged that the Company, in response to the request to exercise the rights formulated by the Claimant on the date 03/07/2020, did not provide any feedback.

Preliminarily, it is noted that Article 15 of the Regulation recognizes the right of the data subject to obtain from the data controller confirmation that processing of personal data concerning them is underway and, consequently, to gain access to such data and to the information listed in letters a) - h) of the same article.

It should also be noted that Article 12 of the Regulation provides that the data controller must provide the data subject access to their data and all information requested pursuant to Articles 15 et seq. of the Regulation "without undue delay and, in any case, no later than one month from the receipt of the request."

Within the same timeframe, if the data controller deems it necessary to apply the provided two-month extension due to "the complexity and number of requests," they must inform the data subject, indicating the reasons; "if the data controller does not comply with the request of the data subject, they must inform the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy."

Based on the above provisions, it is therefore established that the Company, as the data controller, did not provide feedback to the request of the applicant, including regarding the reasons for non-compliance, in violation of the provision of Article 12 of the Regulation.

The Company indicated, as the main reason for non-compliance, the material error it allegedly incurred and (generic) organizational difficulties.

In this regard, it is highlighted that such an argument cannot be taken as a valid reason for excluding the party's liability, not only due to the generality of the statement (which is not supported by adequate elements) but also due to the omission in conduct.

In fact, the exemption of good faith referred to in Article 3 of Law No. 689/1981 occurs only in the presence of a positive element, external to the author of the violation, such as to generate the belief in the lawfulness of their actions, in addition to the condition that the author has done everything possible to comply with the law and that no reproach can be made against them (see, among others, Civil Section Labor, July 12, 2010, No. 16320).

In any case, it must be positively assessed that the Company declared it had implemented technical

and organizational measures aimed at facilitating the exercise of the rights of data subjects, indicating an internal contact person responsible for managing access requests.

It should also be noted that, in the response provided following the invitation to comply, the Company failed to communicate to the applicant the specific data subject to processing, limiting itself to indicating the type of data processed (such as name and surname, email address, and bank details, etc.), thus preventing the applicant from concretely verifying the correctness and accuracy of the data subject to processing.

In fact, as indicated by Article 15 of the Regulation, the data subject has "the right to obtain from the data controller confirmation whether or not processing of personal data concerning them is underway" and consequently, in the affirmative case, the right "to obtain access to the data" themselves and to further information.

4. Conclusions: unlawfulness of the processing carried out.

In light of the preceding evaluations, it is noted that the statements made by the data controller in the defensive writings - the truthfulness of which they may be called to answer pursuant to Article 168 of the Code - do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to permit its archiving, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, are applicable.

The processing carried out by the Company, consisting of the failure to respond to the request for the exercise of the claimant's rights, is unlawful in the terms outlined above, in relation to Articles 12, paragraph 3, and 15 of the Regulation.

The established violation cannot be considered "minor," taking into account the nature of the violation concerning the exercise of rights, the severity and duration of the same, the degree of responsibility, and the manner in which the Authority became aware of the violation (Recital 148 of the Regulation). For the aforementioned reasons, therefore, the complaint submitted pursuant to Article 77 of the Regulation is declared well-founded and, in the exercise of the corrective powers attributed to the Authority pursuant to Article 58, paragraph 2, of the Regulation:

- the Company is ordered to respond to the request for the exercise of rights made by the claimant, regarding the personal data related to them, of which it is still in possession;
- the application of an administrative monetary sanction is ordered pursuant to Article 83, paragraph 5, of the Regulation.

5. Order of injunction.

The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an order of injunction (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data concerning the claimant, the unlawfulness of which has been established.

in the terms outlined above.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, taking into account that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into consideration:

- regarding the nature, severity, and duration of the violation, the nature of the violation concerning the provisions related to the exercise of the rights of the data subjects has been deemed relevant; as well as the circumstance that the violation lasted for a long period of time (approximately 10 months) and that, to date, the information provided is only partial;
- the absence of relevant previous violations committed by the data controller;
- the degree of cooperation provided by the Company during the proceedings, the circumstance that the violation concerned only one data subject, and the adoption of measures aimed at facilitating the requests for the exercise of the rights of the data subjects.

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the

amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the revenues achieved and referred to the financial statements for the year 2020. In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €5,000.00 (five thousand) for the violation of Articles 12 and 15 of the Regulation.

In this context, also considering the type of violation established, which concerned the rights of the data subject, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GARANTE declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out, as stated in the reasoning, for the violation of Articles 12, paragraph 3, and 15 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, WiPlanet sas di Torri Carlo Alberto, in the person of the legal representative pro tempore, with registered office in Viterbo, via della Chimica snc, VAT No. 02017450566, to pay the sum of €5,000.00 (five thousand) as an administrative monetary sanction for the violations indicated in this provision;

pursuant to Article 58, paragraph 2, letter c), of the Regulation, WiPlanet sas di Torri Carlo Alberto, to satisfy the request for the exercise of the right of access by the data subject to the data still in the possession of the company, within 30 days from the receipt of this provision;

ENJOINS

the same Company to pay the sum of €5,000.00 (five thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by payment – always according to the methods indicated in the annex – of an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and believes that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Requests the company to communicate the initiatives undertaken to implement the provisions of this provision and to provide adequately documented feedback, pursuant to Article 157 of the Code, within 40 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e), of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed with the ordinary court of the location identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, February 8, 2024

THE PRESIDENT

Stanzione

THE REPORTER

THE DEPUTY SECRETARY GENERAL

Filippi